the suit had been brought in the usual manner; and no reference can be had to the proceedings on the attachment.

Considering the case as it is made out in the pleadings, the defendant in the circuit court is charged, on his original liability, for a transaction of his own. Edmond Rice, having been manager of the whole concern, for the proprietors of the tan-yard, in Washington, with power to buy hides and sell leather, there can be no doubt of his power to charge them for skins and hides, received by him in the course of business. The papers, No. 2 and 3, purport, on their face, to be an account of transactions of this description. The only objection made to them, is, that instead of the journal of hides delivered *on each day, the manager has given, at considerable intervals, the total amount of hides received from the last preceding settlement, up to that time. We are not aware of any principle which can make such a general certificate less binding, than one detailing the separate transactions of each day. The proprietors themselves, or either of them, might have made the same acknowledgment; and we perceive no reason why the acknowledgment of the manager, so far as respects the form in which it is made, should not be of the same obligation as that of the proprietors. [*316

The paper No. 1 is more questionable. It does not purport to be given for hides received at the tan-yard, nor does it express the items which constitute the charge; but it is said to be the balance due from James D. Barry (in whose name the business was conducted), "on settlement." Edmond Rice, the person who gave this certificate, had authority to give it on account of the transactions of the tan-yard; and it does not appear that he had authority to give it on any other account. It is an additional circumstance, of no inconsiderable weight, that the account closes on the 5th of April 1817, the day on which the subsequent account, which is avowedly for hides, commences. These circumstances combined, were, we think, sufficient to justify the submission of this paper also to the jury.

The next objection to the admission of these papers, is, that the plaintiff in the circuit court, has failed to prove that Robert Barry was one of the proprietors of the tan-yard, while the business was conducted in the name of James D. Barry. The evidence, on this point, was given by Thomas Rice, and has been already fully stated. We think, the testimony of a partnership was very strong. It could not, with propriety, have been withheld from the jury.

The question on which the plaintiff in error most relies, remains to be considered. This suit is brought on a partnership transaction, against one of the partners. The declaration states a contract with the partner who is sued, and gives no notice that it was made by him with another. Will evidence of a joint *assumpsit* support such a declaration? Although it has been held from the 36 Hen. VI. 38, that a suit against one of several joint obligors, might be sustained, unless the matter was pleaded in abatement; yet with respect to joint contracts, either in writing or by parol, a different rule was formerly adopted; upon the ground of a supposed variance between the contract laid, and that which was proved. This distinction was overruled by Lord MANSFIELD, in the case of *Rice* v. *Shute*, 5 Burr. 2611. The same point was *afterwards adjudged, in *Abbott* v. *Smith*, 2 W. Bl. 695; and has been ever since invariably maintained. The prin- [*317

ciple is, that a contract, made by copartners, is several as well as joint, and the *assumpsit* is made by all and by each. It is obligatory on all, and on each of the partners. If, therefore, the defendant fails to avail himself of the variance, in abatement, when the form of his plea obliges him to give the plaintiff a proper action, the policy of the law does not permit him to avail himself of it, at the trial.

The course of decisions, since the case of *Rice* v. *Shute*, has been so uniform, that the principle would have been considered as too well settled for controversy; had it not lately been questioned by a judge, from whose opinions we ought not lightly to depart. That judge supposed, that if the defendant had no notice, in the previous stage of the proceedings, which might inform him of the nature of the action, he was guilty of no negligence in failing to plead in abatement, and ought not to be deprived of his defence at the trial. But the declaration never gives this notice, where the suit is brought against one only of the partners. He is always proceeded against, as if he were the sole contracting party; and if the declaration were to show a partnership contract, the judgment against the single partner could not be sustained. The cases cited by Mr. Serjeant Williams, in note 4, on the case of *Cabell* v. *Vaughan* (1 Saund. 291, n. 4), shows conclusively, that the want of notice has never been considered, since *Rice* v. *Shute*, as justifying this exception to the evidence at the trial. We think, there is no error, and the judgment is affirmed.

Judgment affirmed.

---

*318] *Peter Dox, Gerrit La Grange and Isaiah Townsend, impleaded with Gerrit L. Dox, Plaintiffs in error, *v.* The Postmaster-General of the United States, Defendant in error.

Postmasters' bonds.—Laches.

The act of congress for regulating the post-office department, does not, in terms, discharge the obligors in the official bond of a deputy-postmaster, from the direct claim of the United States upon them, on the failure of the postmaster-general to commence a suit against the defaulting postmaster, within the time prescribed by law; their liability, therefore, continues; they remain the debtors of the United States; the responsibility of the postmaster-general is superadded to, not substituted for, that of the obligors. p. 323.

The claim of the United States upon an official bond, and upon all parties thereto, is not released by the *laches* of the officer, to whom the assertion of this claim is intrusted by law; such *laches* have no effect whatsoever on the right of the United States, as well against the sureties, as the principal in the bond. p. 325.

United States *v.* Kirkpatrick, 9 Wheat. 720, re-affirmed.

This case was brought up from the Circuit Court of the United States for the Southern District of New York, in the second circuit, upon a certificate of the judges of that court, that they disagreed on certain points, set forth in the certificate.

The cause was commenced in the district court of the United States for the northern district of New York, and removed by writ of error, to the circuit court. The following were the points of disagreement: 1st. Whether the district court had jurisdiction of the cause? 2d. Whether, by the facts appearing on the record, and admitted by the pleadings, or found by the jury, the sureties are exonerated, or discharged from their liability upon the

bond set forth in the record? 3d. Whether the said bond, from the facts so found or admitted by the pleadings, or appearing on the record, can, in judgment of law, be considered as paid and satisfied, or otherwise discharged?

The original suit was commenced in the district court, in August 1823, and the plaintiff declared in debt, on a bond, in the penal sum of $6000, executed on the 1st of January 1816, by Gerrit L. Dox, Peter Dox, Gerrit La Grange and Isaiah Townsend; conditioned for the faithful performance of the duties of postmaster, at Albany, by Gerrit L. Dox.

The declaration alleged two breaches of the condition of the bond: 1. That said Gerrit L. Dox did not, at any time between the *first [*319
day of January 1816, and the 1st day of January 1817 (he being, during the whole of that time, postmaster as aforesaid), render any accounts of his receipts and expenditures, according to the condition of said bond; but utterly neglected so to do. 2. That after the date of said bond, and more than three months previous to the commencement of the suit, there came to the hands of said Gerrit L. Dox, as such postmaster as aforesaid, the sum of $6000, for postages, over and above commissions, &c., which he had not paid over to the postmaster-general; but had refused so to do, although often requested, &c.

Gerrit L. Dox, the principal obligor, pleaded separately three pleas: 1. *Non est factum*, and tendered an issue. 2. To the first breach, that he did render true accounts of his receipts and expenditures as such postmaster, &c., and tendered an issue. 3. To the second breach, that he had paid to the postmaster-general all the moneys he had received, over and above his commissions, &c., and tendered an issue. Issues were joined on these pleas as tendered.

The defendants, Peter Dox, Gerrit La Grange and Isaiah Townsend, the sureties of said Gerrit L. Dox, pleaded six pleas: 1. *Non est factum*, and tendered an issue. 2. To the first breach, that Gerrit L. Dox did render true accounts of his receipts and expenditures, &c., and tendered an issue. 3. To the second breach, that the said Gerrit L. Dox had paid to the postmaster-general all the moneys he had received over and above his commissions, &c., and tendered an issue. 4. To the second breach, that they executed the bond as sureties; that Gerrit L. Dox was removed from office, on the first day of July, A. D. 1816; that the postmaster-general, knowing there were sureties, did not open an account against Gerrit L. Dox, and make any claim and demand on him for the moneys received by him as postmaster, until the first day of July, A. D. 1821; at which time, the postmaster-general did open an account against, and claim and demand of said Gerrit L. Dox, the sum of $3041.35; that Gerrit L. Dox, at the time of his removal from office, was solvent, and able to pay his debts, and continued so for three years, and until the first day of July 1819; and that after the first day of July 1819, and before the first day of July 1821, to wit, on the first day of January, A. D. 1820, he became insolvent, and still continues to be insolvent. This plea concluded with a verification. *5. To the [*320
second breach, that they executed said bond as sureties for said Gerrit L. Dox; that said Gerrit L. Dox was removed from office on the first day of July, A. D. 1816; that the postmaster-general, well knowing that they were sureties for Gerrit L. Dox, and that Gerrit L. Dox had neglected and